

# TAB 14



## Board of Education Report

**File #:** Rep-372-25/26, **Version:** 1  
**In Control:** Environmental Health & Safety

**Agenda Date:** 4/21/2026

### **Adoption of the Negative Declaration for the 32<sup>nd</sup> Street USC (32<sup>nd</sup> St./USC) Magnets Major Modernization Project**

Office of Environmental Health and Safety

#### **Brief Description:**

(Adoption of the Negative Declaration for the 32<sup>nd</sup> Street USC Magnets Major Modernization Project). Recommends review and adoption of the Negative Declaration (ND) for the proposed 32<sup>nd</sup> Street USC Magnets (32<sup>nd</sup> St./USC) Major Modernization Project prepared in compliance with the California Environmental Quality Act (CEQA; Public Resources Code §21000 et seq.) and State CEQA Guidelines (California Code of Regulations, Title 14, Division 6, Chapter 3 §15000 et seq.). Furthermore, the Environmental review of the Project found that there would be no significant impacts as a result of the construction and operation of the Project with the implementation of LAUSD Standard Conditions of Approval.

#### **Action Proposed:**

Review and adopt the Negative Declaration (ND) for the proposed Project prepared in compliance with the California Environmental Quality Act (CEQA; Public Resources Code §21000 et seq.) and State CEQA Guidelines (California Code of Regulations, Title 14, Division 6, Chapter 3 §15000 et seq.). An Initial Study/Negative Declaration was prepared for the Project. Environmental review of the Project found that there would be no significant impacts as a result of the construction and operation of the Project with the implementation of LAUSD Standard Conditions of Approval.

#### **Background:**

On October 12, 2021, the Los Angeles Unified School District (Los Angeles Unified or District) Board of Education (Board) approved the project definition for site due diligence, planning, and feasibility activities necessary to propose scope recommendations, budget, and schedule for the proposed Project (Board Report No. 085-21/22). On November 14, 2023, the Board approved the project redefinition for the proposed Project to begin the environmental review, design, procurement, and other activities necessary to implement the proposed project (Board Report No. 073-23/24). Subsequently, on November 19, 2024, the Board approved the Alternative Design-Build Contract Award to Charles Pankow Builders, Ltd. in partnership with QDG Incorporated (dba QDG Architecture) for Phase 1 of the contract to provide design and preconstruction services for the proposed Project, and on March 10, 2026, the Board approved a contract amendment to the Alternative Design-Build Contract to include Phase 2 construction services.

The proposed Project is located on a 3.67-acre school campus at 822 W 32nd Street in the City of Los Angeles (Board District 1, Region South). 32nd St/USC Magnets (School) is a span school serving Grades K-12. All existing buildings were constructed between 1949 and 2010. As of the 2025-2026 Electronic Capacity Assessment Review (E-CAR), the School served approximately 900 students.

The proposed Project involves the modernization and enhancement of the School with the construction of new buildings and site improvements with approximately twenty-three general and specialty classrooms and support

spaces. The proposed Project also includes the demolition of thirteen uncertified relocatable buildings and one storage building.

Additional improvements encompass exterior painting of all remaining buildings to provide a uniform appearance; associated landscape, hardscape, and related infrastructure upgrades including a new electrical transformer. The proposed Project also includes accessibility upgrades to ensure compliance with the Americans with Disabilities Act (ADA) requirements, and local, state, and federal regulations.

To support the School during construction, the programs will temporarily relocate to the former Downtown Business Magnet (DBM) campus where interim facilities will be upgraded to include an elementary play area, exterior upgrades, and minor reconfiguration of existing demountable partitions.

The former DBM campus is located at 1081 West Temple Street, in the City of Los Angeles (Board District 2, Region East). The campus was vacated by Downtown Business Magnet High School in the Summer of 2022 and most recently served as interim space for Rise Kohyang High School operated by Bright Star Schools. A portion of the site houses KLCS Education Foundation (KLCS), which will remain in place while the School temporarily occupies the site.

The site is not on any hazardous waste lists under Section 65962.5 of the Government Code. A site-wide Phase I ESA was conducted in 2022, and a PEA-E for the project area in November 2025 and January 2026. The PEA-E identified lead and arsenic in the soil samples, and a Soil Management Plan was prepared as part of the PEA-E report and recommended the removal of the contaminated soil. Proper disposal procedures pursuant to the Department of Toxic Substances Control (DTSC) and LAUSD Standard Conditions of Approval should be followed.

The District's Office of Environmental Health & Safety (OEHS) evaluated the proposed Project to determine its potential impacts on the environment in accordance with CEQA, Public Resources Code §21000, et seq., and State CEQA Guidelines, Title 14 California Code of Regulations §15000 seq.

Environmental review of the Project found that there would be no significant impacts as a result of the construction and operation of the Project with the implementation of LAUSD Standard Conditions of Approval. This evaluation, as documented in the Initial Study (IS), resulted in the preparation of a Negative Declaration (ND) (State Clearinghouse Number 2026010388). The District circulated the IS/ND for a 30-day public review period from January 15, 2026 to February 17, 2026. Copies of the IS/ND were available for review electronically on the OEHS and on the State Clearinghouse websites and printed copies made available for public review at LA Unified School District Headquarters and at 32nd St/USC.

The District posted the Notice of Intent to Adopt a Negative Declaration (NOI) on the OEHS website during the public review period, mailed the NOI to all owner/occupants located within a 0.25-mile radius of the Project site and to parents/guardians of students, published the NOI in two local newspapers (Daily News and La Opinión), and posted the NOI and notice of virtual public meeting around the campus. The District filed the NOI with the Los Angeles County Clerk and with the State Clearinghouse for distribution to potentially affected state agencies, local agencies, tribal agencies pursuant to AB 52, and known interested parties.

At the end of the public review period, the District received one comment letter from the Department of Toxic Substances Control. All comments received were responded to by the District and are included in the attached Responses to Comments (RTC).

**Expected Outcomes:**

Staff anticipate that the Board will review and make a determination on the attached Resolution to adopt the ND pursuant to CEQA and State CEQA Guidelines. This action is required for the Board to consider approval of the Project.

**Board Options and Consequences:**

A “Yes” vote to adopt the Negative Declaration would enable the Board to consider approval of the Project.

A “No” vote to adopt the Negative Declaration would prevent the Board from approving the proposed Project, and the proposed Project could not proceed into construction.

**Policy Implications:**

This action does not change District policy. This action helps facilitate the Facilities Services Division Strategic Execution Plan and supports the goals and objectives of the School Upgrade Program (SUP). On August 24, 2021, the Board adopted an update to the SUP to integrate Measure RR funding and priorities into its operational framework and approved the Measure RR Implementation Plan (Implementation Plan) to help guide the identification of sites and development of project proposals (Board Report No. 027-21/22). The proposed Project supports the implementation of the Modernization, Upgrade and Development of High School Athletic Facilities. Projects to upgrade high school athletic facilities within each Board District fall under the SUP category of need for School Upgrades and Reconfigurations to Support Wellness, Health, Athletics, Learning, and Efficiency (WHALE).

**Budget Impact:**

The budget for the proposed Project is \$107,959,859. The proposed Project is funded by Bond Program funds targeted in the SUP for major modernizations, upgrades, and reconfigurations to school campuses.

**Student Impact:**

The proposed Project will help ensure that approximately 900 existing and future students attending the School are provided with safe and updated facilities that support learning.

**Equity Impact:**

The intent of the major modernization project is to address buildings and grounds that pose a safety concern and have the greatest needs for upgrades with emphasis placed on seismic safety, reducing Los Angeles Unified’s reliance on relocatable buildings, and addressing the most critical/severe physical conditions. While the Project is extensive in nature, less critical items may not be addressed. This approach allows Los Angeles Unified to reach more schools with the limited funding available.

**Issues and Analysis:**

Environmental review of the proposed Project found that Los Angeles Unified’s Standard Conditions and Approvals, Project Design Features, as well as all applicable state, federal, and local regulations, there would be no significant impacts as a result of the Project. The District is the “Lead Agency” as defined in the State CEQA Guidelines §§15050-15053, and the Board shall review and consider the ND and its supporting documents and comments.

**Attachments:**

Attachment A - Resolution of the Los Angeles Unified School District Board Adopting the Negative Declaration for the 32<sup>nd</sup> St./USC Magnet Major Modernization Project

Due to the file size, the following attachments may be viewed/downloaded at the links below:

Attachment B - Initial Study/ Negative Declaration

<https://media.edlio.net/4c6d677b/bb1fc79c/dca1bb75/2342332b3ca241fb90c4a56e78e307f2?>

Attachment C - Initial Study/ Negative Declaration Appendices: the CEQA website

<https://media.edlio.net/4c6d677b/bb1fc79c/bc5c92d1/215ac4fff3b6432a8aeb7c70d173187c?>

Attachment D - Responses to Comments

[https://drive.google.com/file/d/1aYr47GD\\_DN8WInwq6gDYH9THPfM9qW4W/view?](https://drive.google.com/file/d/1aYr47GD_DN8WInwq6gDYH9THPfM9qW4W/view?)

Linked materials of previously adopted Board reports referenced in the background and policy implications sections:

- Adopted November 14, 2023, [Board Report No. 073-23/24](https://drive.google.com/file/d/1V9IhJVdVEhKDPKdk68s57tBRz09sv16F/view?usp=sharing)  
<https://drive.google.com/file/d/1V9IhJVdVEhKDPKdk68s57tBRz09sv16F/view?usp=sharing>
- Adopted October 12, 2021, [Board Report No. 085-21/22](https://drive.google.com/file/d/1MIIZL3315F6sBv0k2IQXSOjUFQMC5Gcp/view?usp=sharing)  
<https://drive.google.com/file/d/1MIIZL3315F6sBv0k2IQXSOjUFQMC5Gcp/view?usp=sharing>
- Adopted August 24, 2021, [Board Report No. 027-21/22](https://drive.google.com/file/d/1WJNvfl_ATG8VbpDx6KXq4_w2GxmSBNJA/view?)  
[https://drive.google.com/file/d/1WJNvfl\\_ATG8VbpDx6KXq4\\_w2GxmSBNJA/view?](https://drive.google.com/file/d/1WJNvfl_ATG8VbpDx6KXq4_w2GxmSBNJA/view?)

**Submitted:**

03/30/26

**RESPECTFULLY SUBMITTED,**

  
ANDRES E. CHAIT  
Acting Superintendent

**APPROVED & PRESENTED BY:**

  
PEDRO SALCIDO  
Deputy Superintendent  
Business Services & Operations

**REVIEWED BY:**

  
DEVORA NAVERA REED  
General Counsel

**APPROVED & PRESENTED BY:**

  
JAIME G. TORRENS  
Senior Advisor to the Superintendent

☒ Approved as to form.

**REVIEWED BY:**

  
KURT E. JOHN  
Deputy Chief Financial Officer

**APPROVED & PRESENTED BY:**

  
CARLOS A. TORRES  
Director  
Office of Environmental Health & Safety

☒ Approved as to budget impact statement.



## LOS ANGELES UNIFIED SCHOOL DISTRICT Board of Education Resolution

### RESOLUTION OF THE LOS ANGELES UNIFIED SCHOOL DISTRICT BOARD OF EDUCATION ADOPTING THE NEGATIVE DECLARATION FOR THE 32<sup>ND</sup> STREET USC MAGNETS MAJOR MODERNIZATION PROJECT

Whereas, on November 3, 2020, voters in Los Angeles Unified School District (Los Angeles Unified or District) passed Measure RR (School Upgrades and Safety Measure) as a funding mechanism to help address the significant and unfunded needs of LAUSD public school facilities; and

Whereas, under Measure RR and in conjunction with other, ongoing Los Angeles Unified Facilities programs, the District is proposing to upgrade, modernize, and replace aging and deteriorating District school facilities; update technology; and address District school facilities inequities to provide students with physically and environmentally safe, secure, and updated school facilities that support 21<sup>st</sup> century learning at hundreds of neighborhood schools District-wide; and

Whereas, on October 12, 2021, the Los Angeles Unified School District Board of Education (Board) approved the project definition for site due diligence, planning, and feasibility activities necessary to propose scope recommendations, budget, and schedule for the proposed Project (Board Report No. 085-21/22). On November 14, 2023, the Board approved the project redefinition for the proposed Project to begin the environmental review, design, procurement, and other activities necessary to implement the proposed project (Board Report No. 073-23/24). Subsequently, on November 19, 2024, the Board approved the Alternative Design-Build Contract Award to Charles Pankow Builders, Ltd. in partnership with QDG Incorporated (dba QDG Architecture) for Phase 1 of the contract to provide design and preconstruction services for the proposed Project, and on March 10, 2026, the Board approved a contract amendment to the Alternative Design-Build Contract to include Phase 2 construction services; and

Whereas, the proposed Project is located on a 3.67-acre school campus at 822 W 32<sup>nd</sup> Street in the City of Los Angeles (Board District 1, Region South). 32<sup>nd</sup> St/USC Magnets (School) is a span school serving Grades K-12. As of the 2025-2026 Electronic Capacity Assessment Review (E-CAR), the School served approximately 900 students; and

Whereas, the proposed Project involves the modernization and enhancement of the School with the construction of new buildings and site improvements with approximately twenty-three general and specialty classrooms and support spaces. The proposed Project also includes the demolition of thirteen uncertified relocatable buildings and one storage building. Additional improvements encompass exterior painting of all remaining buildings to provide a uniform appearance; associated landscape, hardscape, and related infrastructure upgrades including a new electrical transformer. The proposed Project also includes accessibility upgrades to ensure compliance with the Americans with Disabilities Act (ADA) requirements, and local, state, and federal regulations. To support the School during construction, the programs will temporarily relocate to the former Downtown Business Magnet campus where interim facilities will be upgraded to include an elementary play area, exterior upgrades, and minor reconfiguration of existing demountable partitions; and

Whereas, the site is not on any hazardous waste lists under Section 65962.5 of the Government Code. A site-wide Phase I ESA was conducted in 2022, and a PEA-E for the project area in November 2025 and January 2026. The PEA-E identified lead and arsenic in the soil samples, and a Soil Management Plan was prepared as part of the PEA-E report and recommended the removal of the contaminated soil. Proper disposal procedures pursuant to the Department of Toxic Substances Control (DTSC) should be followed.

Whereas, the District's Office of Environmental Health & Safety (OEHS) evaluated the proposed Project to determine its potential impacts on the environment in accordance with CEQA, Public Resources Code §21000, et seq., and State CEQA Guidelines, Title 14 California Code of Regulations §15000 et seq.; and

Whereas, environmental review of the Project found that there would be no significant impacts as a result of the construction and operation of the Project with the implementation of LAUSD Standard Conditions of Approval and mitigation measures. This evaluation, as documented in the Initial Study (IS), resulted in the preparation of a Negative Declaration (ND) (State Clearinghouse Number 2025100439). The District circulated the IS/ND for a 30-day public review period from January 15, 2026, to February 17, 2026. Copies of the IS/ND were available for review electronically on the OEHS website and on the State Clearinghouse website and printed copies made available for public review at LA Unified School District Headquarters at Beaudry and at the School; and

Whereas, on January 15, 2026, the District filed the Notice of Intent to Adopt a Negative Declaration (NOI) pursuant to the requirements of CEQA, Public Resources Code §21000, et seq., and State CEQA Guidelines, Title 14 California Code of Regulations §15000 et seq.; and

Whereas, from January 15, 2026, to February 17, 2026, the District circulated the IS/ND for public review with electronic copies on the OEHS and State Clearinghouse websites and printed copies at LA Unified School District Headquarters and at the School; and

Whereas, the District posted the Notice of Intent to Adopt a Negative Declaration (NOI) on the OEHS website during the public review period, mailed the NOI to all owner/occupants located within a 0.25-mile radius of the Project site, to parents/guardians of students, and published the NOI in two local newspapers (Daily News and La Opinión). The District filed the NOI with the Los Angeles County Clerk and with the State Clearinghouse for distribution to potentially affected state agencies, local agencies, tribal agencies pursuant to AB 52, and known interested parties; and

Whereas, the District responded to comments received during the public review period and at a community meeting in the Responses to Comments (RTC); and

Whereas, the District is the "Lead Agency" as defined in State CEQA Guidelines §§15050-15053, and the Board shall review and consider the ND and its supporting documents and comments.



Resolved, that the Board finds that:

The Project may not have an adverse effect on fish and wildlife, as referenced in §711.2 of the Fish and Game Code; and

The presumption of adverse effect set forth in California Code of Regulations, Title 14, §753.5(d) does not apply; and be it

Resolved further, that the Board hereby:

1. Finds that the ND was completed in compliance with CEQA and State CEQA Guidelines, as amended; and
2. Finds that the ND reflects the District's independent judgment and analysis; and
3. Finds that the Board reviewed and considered the information in the ND before making a decision to approve the Project; and
4. Adopts the ND; and be it

Resolved further, that the Board specifies that the record of proceedings on which the Board's decision is based is located at the Los Angeles Unified School District, Office of Environmental Health and Safety, 333 South Beaudry Avenue, 21st Floor, Los Angeles, California, and the custodian of the record of proceedings is the Office of Environmental Health and Safety.

**PASSED, APPROVED AND ADOPTED this 21<sup>st</sup> day of April 2026, by the following vote:**

**AYES:**

**NOES:**

**ABSENT:**

**ABSTAIN:**

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**Michael McLean**  
**Executive Officer of the Board of Education**

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**Date**